

**The Kernel of Scholastic Theology, from the Secunda Secundae
— Tract I, Disp. I On Faith, Q. I, Sect. I, Subsection IV:
Whether among the other material objects of theological faith
there is also this, that the Supreme Pontiff reigning for the time
being is true Pontiff**

Fr. Mathias Bartis (Matěj Bartys), O.Cist., professed of the royal abbey of Velehrad, ordinary Professor of Sacred Theology at the Archiepiscopal College of St. Adalbert in Prague — defended by Fr. Bernard Hein, O.S.B., of Břevnov-Braunau; Prague, Matthias Höger, 1731; printed pp. 57–76, with two excerpts from printed pp. 158 and 166

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BLOCK A — Subsectio IV (printed 57–76)

SUBSECTION IV.

Whether among the other material objects of Theological Faith there is also this: that the Supreme Pontiff, reigning for the time being, is a true Pontiff.

1. It is certain that it is a remote object, as being revealable if not revealed, and that always intrinsically, so that it can never become unrevealable except extrinsically, and therefore that it is always at least remotely credible, if not proximately, as is clear from the preceding subsection. But it is doubtful whether it is a proximate object, that is, not only revealable but also revealed, and therefore proximately credible and in fact of faith, namely this: that the Supreme Pontiff reigning for the time being, legitimately elected and peacefully accepted by the whole Church, without just contradiction, and thus possessing his Pontificate as legitimately so peacefully, and not authentically renouncing it (such as we look up to today the most holy lord Clement XII), is a true Pontiff, the successor of blessed Peter, and the Supreme Vicar of Christ on earth. With a view to settling this in the present subsection:
2. I note first: that revelation, so far as concerns the present matter, is of three kinds: one *formal explicit*, another *formal implicit*, another *virtual implicit*. *Formal explicit* revelation is when some truth has been *expressly* manifested by God, whether through Scripture or through tradition, as: *that God is one and triune, that Christ is the Son of God and of man*, etc. Next, *formal implicit* revelation is when in one truth, explicitly revealed, another is contained, or at least the latter is connected with the former *essentially*, as *the definition is contained in the thing defined*, and *the particular proposition is contained in the universal proposition*, and a

mountain is connected with a valley, etc. Finally, *virtual implicit* revelation is when in one truth, explicitly revealed, another is contained only *really*, for instance a property in an essence, as *risibility, the capacity for weeping*, etc., in *man*. Further, to determine the proximate matter of faith, *formal explicit revelation* is not necessarily required, but *formal implicit* revelation suffices, deducible by an infallible conclusion from *formal explicit revelation*, although *virtual implicit* revelation does not suffice, as for the moment I presuppose from Section 2, being about to expound this same point duly in Subsection 5 of the same Section. And therefore every proposition revealed *formally*, whether *explicitly* or *implicitly*, though no proposition revealed only *virtually*, is a proximate material object of Theological Faith, and of faith. Further:

3. I note secondly: that this proposition — *every Pontiff legitimately elected and peacefully accepted by the Church is a true Pontiff, and the Supreme visible Head of the Church militant, the Vicar of Christ* — both in the dogmatic and in the political sense, in a named person comprehending unnamed persons, is equivalent to this proposition: *Thou art Peter, and upon this rock I will build[1] my Church. Matth. 16.* And the reason is this: because otherwise, unless under the *literal sense of the historical person of Peter* there were understood, in the *spiritual sense, the mystical person of Peter*, that is, *every Pontiff legitimately elected and peacefully accepted by the Church*, that promise of Christ would not be true — a promise which nevertheless cannot be false, since it was made by eternal truth, *immediately* indeed to the Apostles, but *mediately* to the whole Church militant: *I am with you all days, even to the consummation of the world. Matth. 18.*[2] And certainly He is with her not through Himself, that is, in the manner proportioned to the said Church, namely *visibly*, nor in the *historical person of Peter*: therefore in *every Pontiff legitimately elected and peacefully accepted by the Church*, as in the *mystical person of Peter* and His Vicar on earth. For as He instituted the Church militant as visible, so He also willed her to be governed by visible Heads until the end of the world; otherwise there would have been no need even of Peter, if He had willed her to be governed *invisibly*. And accordingly that proposition, *every Pontiff legitimately elected and peacefully accepted by the Church*, etc., just like this proposition, *Thou art Peter*, etc. — the one being equivalent to the other — is revealed *formally explicitly* in the place just cited, namely *Matth. 16.* And consequently, on the supposition of the question proposed, that the Supreme Pontiff reigning for the time being is *legitimately elected and peacefully accepted by the Church*, etc., then, as of every such Pontiff in general it is revealed *explicitly*, so of this one in particular it is revealed *formally implicitly*, that he is a true Pontiff, the successor of blessed Peter, etc. Lastly:

{p. 59}57. I note thirdly: that there is altogether in the Church a power of electing and accepting the Supreme Pontiff, as the continuous usage of the Church proves, a usage founded in that sweet and infallible divine providence which governs the Church; by which usage she from the beginning chose and accepted such a visible Head, and in fact does choose and accept one, and will choose and

accept one until the consummation of the world, according to that manner which she has seen, and sees, and will see to be suitable. Thus at the beginning the vote of the whole Roman clergy and of the bishops neighboring on Rome was employed, and once that vote had been given, the consent of the people was further awaited, not indeed by way of a suffrage, but by way of a testimony concerning the life and morals of the newly elected. Afterwards, when the number of the Roman clergy had grown somewhat larger, the vote of a smaller number deputed from that same clergy for this purpose was employed: earlier these were the *Regionarii*, named from the fourteen regions of the city of Rome, over each of which one of them was set; later they were called Cardinals by Sylvester I, as being, so to speak, the hinges (*cardines*) of the Church. Innocent IV distinguished them with the red hat, so that they might be warned by it not to hesitate that their own blood must be poured out for the liberty of the Church. But at present the vote of these same Cardinals is employed, though in a larger number, and this by the constitution of Alexander III, two thirds of the suffrages, or votes, being required for a valid election. St. Peter himself indeed chose a successor for himself, blessed Clement; the Church, however, did not accept this election, but elected and accepted St. Linus — although blessed Clement himself also renounced the choice of him made by St. Peter, as blessed Epiphanius testifies. From this it may be gathered that, although it belongs to the Pontiff, as Head of the whole Church, to lay down that manner of electing a new Pontiff which he judges fitting, so that, when necessity and utility demand it, in some extraordinary case he may even choose a successor for himself (according to the mind of the Eminent Suárez), nevertheless, speaking of the ordinary course, as no such election has been attempted since St. Peter, so neither is such an election lightly to be attempted hereafter by any Pontiff, except, as I said, in some extraordinary case, lest otherwise the sanctuary of God be possessed by inheritance. And even if, after the example of St. Peter, a Pontiff should himself choose his own successor, the Church could still, after the example of Clement who was not accepted and of Linus who was substituted, not accept him but substitute another; just as she can repudiate anyone elected in whatever manner and not yet accepted. For the election stands only by way of a *dispositive condition* for designating the person of the Pontiff, a condition that can be frustrated of its intended end and consequently is fallible in obtaining that end, as I shall say below at § 61. There I shall also say that, on the contrary, the acceptance by the whole Church, as *the pillar of truth*, standing as the formal designation of the person of the Pontiff as her necessary Head — without whom she can as little endure visibly as any other body can endure without its own head — cannot be otherwise than unfrustrable and infallible. These things being noted beforehand, it is easy to gather the resolution of the question proposed; and setting it down,

1. *I say:* Among the other proximate material objects of Theological Faith, and therefore in fact of faith, is this: that the Supreme Pontiff reigning for the time being, legitimately elected and peacefully accepted by the Church, and thus possessing his Pontificate as legitimately so peacefully, and not authentically renouncing it (such we revere today's Clement XII to be), is a true Pontiff, the successor of blessed Peter, and the Supreme visible Head of the whole Church militant, or, what is the same, the Supreme Vicar of Christ on earth. So, with

Fr. Suárez, holds the common opinion today — indeed, already from the time of Clement VIII, as Oviedo testifies, the unanimous opinion of theologians — against Cajetan, Torquemada, Bañez, and some others. Proof 1, from the authority of the holy Councils, and above all of Constance, where the Bull of Martin V is set out, in which it is laid down that heretics wishing to be reconciled to the Church are to be asked whether they believe that the Pope canonically elected, whoever he shall be for the time being (expressing his name), is the successor of Peter and has supreme power in the Church of God. Therefore the same Martin V, Supreme Pontiff, supposes that among the other material objects of Theological Faith, and among the proximate ones, is this: the Pope canonically elected; otherwise he would not require this to be believed by heretics who are to be reconciled to the Church. And this not only in general, but also in particular, indeed in the singular, that is, in the individual, as the adduced words of the Bull indicate: *whoever he shall be for the time being*, and especially those placed within the parenthesis: *expressing his name*. Other Councils hold the same, which, as they themselves acknowledged the Pontiffs reigning for the time being, so proposed them to the faithful as men to be believed to be Vicars of Christ: as Chalcedon did Leo IV, Mileve Innocent III, Trent Pius IV. Proof 2, by theological reason: every truth {p. 61} formally implicitly revealed is a proximate material object of Theological Faith, and of faith, according to *note 1*; but such a truth is this: that the Supreme Pontiff reigning for the time being, legitimately elected and peacefully accepted, etc., is a true Pontiff, the successor of blessed Peter, and the Supreme Vicar of Christ on earth, according to *note 2*; therefore.

2. Confirmation 1, from the infallibility of the Church: because it is of faith that the Church is *the pillar and ground of truth*, 1 Tim. 3, against which *the gates of hell shall not prevail*, Matth. 16. But if it were not of faith that the Supreme Pontiff, legitimately elected and peacefully accepted by the Church, is a true Pontiff and the Vicar of Christ on earth, it would not be of faith that the Church is the pillar of truth against which the gates of hell would not prevail; therefore. I prove the minor: because, first, she could err in accepting the animate rule of faith; for everything that is neither evident nor of faith must lie open to the danger of error. And, consequently, secondly, such a Pontiff, though legitimately elected and peacefully accepted by the Church, could err in defining matters of faith, being in the truth of the matter no Pontiff at all; and yet the Church is bound to believe his definition. And, consequently, further, thirdly, the Church could err by believing the definition of such a Pontiff; therefore.
3. Confirmation 2, from absurd consequences: because, first, it would not be of faith that this individual Church is the true Church, nor likewise that this individual Council, for example Trent, is a true Council. Secondly: all those things would be vain which are believed in the Church by divine faith concerning the Judge of controversies. Thirdly: neither would it be of faith that Benedict XIII, the predecessor of Clement XII who reigns today, was a true Pontiff, and so on through the whole retrograde series of Pontiffs; and consequently neither that there have been or are true bishops and true priests. But these consequences are altogether absurd;

therefore their origin also — namely, that it is not of faith that the Pontiff reigning for the time being is a true Pontiff — is absurd and by no means to be tolerated. But the said consequences are proved: because, first, as the true Church and the true Council in general depend on a true Head in general, so this individual true Church and this individual true Council depend on a true Pontiff in the individual, as on this individual true Head, so that neither a true Church nor a true Council can be believed unless a true Pontiff is believed, for the reason that their truth depends on his truth, as things founded depend on their foundation, or (to use the phrase of Truth himself) on the Rock. Secondly: because anyone could say: I believe indeed that there is in the Church some Judge of controversies, but I do not believe that this Judge is Clement XII; and consequently we shall neither have recourse to him for judgment, nor, when judgment has been received through him, shall we stand by it. Thirdly: because the reasoning is the same for one as for the other; and if the Pontiff falls, the bishops fall, and if these fall, the priests collapse; therefore. But that the said consequences are altogether absurd is likewise easily proved: because, first, we confess in the Creed: *I believe in the holy Catholic Church*. Secondly: because by faith I must believe the dogmas defined by a Council; and now, just as it must be certain by faith that this is a true Gospel, in order that I may believe by faith what the Gospel teaches, so it must be certain by faith that this is a true Council, in order that I may believe by faith what the Council teaches. Thirdly: because if those things were vain which are believed by divine faith concerning the Judge of controversies in the Church, divine faith itself would be — which God forbid — false. Fourthly: because if the Pontiff^[3] fell, as he could fall if this were not of faith, and consequently if the clergy fell, the whole ecclesiastical hierarchy would collapse, and as from the Synagogue, so also from the Church, the priesthood would have been taken away, etc.; therefore.

4. But I said, both in the very statement of the question proposed and in the resolution of it, first: *legitimately elected and peacefully accepted by the Church*, etc., because without a legitimate election and a peaceful acceptance, and with just contradiction, those who occupy the Apostolic See are invaders of it rather than possessors, and are no Pontiffs at all. And this although (as I intimated above at § 57) the *election* stands only *by way of a dispositive condition* for designating the person of the Pontiff — which disposition, being not that of the whole Church, nor that of the Head, at least as such, that is, as speaking from the chair, but that of a partial Church, which does not have the infallible assistance of the Holy Spirit, can be deceived. But the *acceptance* stands *by way of a formal designation* of that person of the Pontiff on whom the principal Head, Christ, confers the Pontifical^[4] dignity itself, the dignity of the Vicarial Head; and this designation, being that of the whole Church, and therefore of her who, as *the pillar of truth*, has the infallible assistance of the Holy Spirit, cannot be deceived. Rather it is a kind of *virtual revelation*, applying to that universal proposition, *formally explicitly revealed, every Pontiff legitimately elected and peacefully accepted is a true Pontiff*, etc., by the deed itself as it were subsuming: but {p. 63}*this individual Pontiff is legitimately elected and peacefully accepted*; and, from that same proposition, infallibly

explicating this particular, or singular, proposition, *formally implicitly revealed* in it, by the deed itself as it were concluding: therefore *this individual Pontiff is a true Pontiff*, etc. Indeed it is a kind of *formal revelation*, according to that saying: *vox Populi, vox DEI* (the voice of the people is the voice of God). Furthermore I said, secondly: *and not authentically renouncing it*, that is, his Pontificate; because, once an authentic renunciation has been made, he resumes the quality of a particular member, having laid down the dignity of universal Head of the whole Church. But in order that a Pope be reckoned to renounce the Papacy authentically, an internal or private renunciation does not suffice; an external and public renunciation is required. For a legitimate possessor is not reckoned to abdicate anything he possesses, and especially a thing such as the Pontificate, unless the abdication made is morally certain. Nevertheless, against the conclusion laid down:

5. Objection I. Martin V requires from heretics wishing to be reconciled to the Church only a conditional faith concerning this individual Pontiff, namely if he has been legitimately elected. Therefore, since it is not certain that this individual man has been legitimately elected as Pontiff, he does not require an absolute faith concerning him, but only a conditional one.
Reply: I deny the antecedent. For he does not require that they believe conditionally, but absolutely, in *one, holy, Catholic, and Apostolic Church*. Therefore (the election being supposed confirmed by the acceptance) neither does he require that they believe only conditionally in the Head of this Church, without whom she would be headless, and, that Head remaining uncertain even on the supposition of her acceptance of him, she would lie open to fallibility — against the infallible assistance of the Holy Spirit promised to her.
6. Objection II. Although in *Prov. 8* God says: *by me kings reign*, etc., and consequently that kings have their power from God himself, nevertheless it is not formally implicitly revealed that this king in the individual is a legitimate king and has his power from God himself; therefore the same holds here by parity. Confirmation 1: although it is of faith that every bishop duly consecrated is a true bishop, nevertheless it is not of faith that this individual bishop is duly consecrated and a true bishop; therefore again by parity. Confirmation 2: although it is of faith that every duly baptized man has obtained sanctifying grace, nevertheless it is not of faith that this individual man is a duly baptized man and has obtained sanctifying grace; therefore once more by parity.

Reply to the argument: I concede the antecedent, I deny the consequence. The dis{p. 64}parity is this: because to a kingdom, in taking up a king, the infallible assistance of the Holy Spirit has not been promised, the kingdom's power of taking him up being here left unquestioned; whereas to the Church it has been promised, as to *the pillar and ground of truth* — and she would cease to be such a pillar if she slipped into error concerning the acceptance of her true Head. Nor was there any reason for promising to a kingdom the infallible assistance of the Holy Spirit in taking up a king, as it was promised to the Church in taking up a Pontiff; since a king, directing men to natural and

temporal happiness, is not infallible in ordering the affairs of his kingdom, whereas the Pontiff is infallible in matters of faith and morals. And this infallibility of the Pontiff in defining matters of faith depends on the truth and infallibility of the Pontificate, and the truth of the Pontificate depends on the infallibility of the acceptance of this individual Pontiff, made by the Church; for where there is no Pontiff, there is no definition. For the rest, as all lay power, so any lay power, is indeed from God, but from God either approving or permitting; whereas ecclesiastical power, namely the Pontifical, is from God approving.

To Confirmation 1. Reply: I again concede the antecedent, and again deny the consequence. The disparity is, first: because the acceptance of a bishop by his diocesans does not have the force of a revelation, as the acceptance of the Pontiff by the Church does; since the former is that of a partial Church, whereas the latter is that of the whole Church. Secondly: because a bishop who is elected can be a simoniac, and his election will be null, and null in such a way that the Pontifical confirmation that follows does not supply its defect, as is held in *¶. cum detestabile. §. per electiones. & §. statuentes. De Simonia*. But on the contrary, even if a Pontiff who is elected be a simoniac, whose first election, made by a part of the Church, will likewise be null, it will yet be null in such a way that its defect is supplied by the second election, that is, the acceptance, which follows, made by the whole Church. To her God has promised the infallible assistance of the Holy Spirit, as to *the pillar of truth*; and as the Holy Spirit can confer the supreme Pontifical dignity on a person presented to him even if unworthy, so, by force of that same promised infallible assistance, which takes away every uncertainty about the Head of his chosen and beloved spouse, he must confer that dignity, namely the Pontifical dignity, on such a person presented to him, even if unworthy — being able, as also willing, through the said assistance of the Holy Spirit, to make capacity out of incapacity in this case. Thirdly: because the nullity of a bishop does not bring upon the whole Church those absurdities which the nullity of a Pontiff brings upon her, namely a false Church, false Councils, a vain faith concerning the Judgement of controversies of faith, etc.

To Confirmation 2. Reply: I distinguish the antecedent. It is not of faith with respect to the one who baptizes: I deny the antecedent; with respect to others: I concede the antecedent, or let it pass; and I deny the consequence. Given this truth formally explicitly revealed, *every duly baptized person obtains sanctifying grace*, the one who duly baptizes can, with physical evidence, or at least with great moral evidence, subsume: but *this man has been duly baptized by me*; and thereupon he can infallibly conclude this truth, formally implicitly revealed and therefore an object of faith: therefore *this man has obtained sanctifying grace*. And so the parity is on our side, though with a disparity that confirms our opinion: the disparity of a lesser infallibility, as being natural, standing for that minor, but *this man has been duly baptized by me*, and of a greater infallibility, as being supernatural, standing for this minor, but *this man has been legitimately elected as Pontiff and peacefully accepted by the Church*. For the rest, speaking of others, the parity collapses. For the one who baptizes can, from that formally explicitly revealed proposition, *every duly baptized person obtains sanctifying grace*, infallibly subsume: but *this man has been duly baptized by me*, and so

apply this to that formally explicitly revealed proposition, and from it explicate this other, formally implicitly revealed: therefore *this man has obtained sanctifying grace*. Or again, a member of the faithful can, from that formally explicitly revealed proposition, *every Pontiff legitimately elected and peacefully accepted by the Church is a true Pontiff*, infallibly subsume: but *this man has been legitimately elected as Pontiff and peacefully accepted by the Church*, and so apply this to that formally explicitly revealed proposition, and from it explicate this other, formally implicitly revealed: therefore *this man is a true Pontiff*. Those who do not baptize, I say, cannot in this way infallibly subsume: but *this man has been duly baptized*; for the reason that those who do not baptize do not, as the one who baptizes does, know infallibly that the requisite intention was made, although they may perhaps know the rest infallibly — unless perhaps that very thing, namely the intention of the one baptizing, should become known to those who do not baptize as well, through a revelation, whether formally such or a revelation equivalently such. And in that case again (with a view to which I said *let it pass*) we should be released from the obligation of giving a disparity between that case and our own. The same answer is to be given to the other parities that are not disparate from this one about baptism, whether with respect to those who confect some sacrament, or with respect to those who receive it, or with respect to others, who, with certainty or uncertainty, deduce from that sacrament itself, or from something else formally explicitly revealed, something else that is formally implicitly revealed.

1. Objection III. Given the revelation of that universal proposition, *every Pontiff legitimately elected*, etc., it is not revealed to us that this individual Pontiff is a man, duly baptized, duly ordained, etc.; therefore neither is it revealed to us that he is a true Pontiff. Confirmation 1: John VIII was accepted by the whole Church, and yet was a Popess rather than a Pope, as Martin of Poland testifies; therefore. Confirmation 2: Formosus was likewise accepted by the whole Church, and yet likewise was no true Pontiff, but a Pseudo-Pope, as Stephen VII declared; therefore.

Reply to the argument: I distinguish the antecedent. *Before the acceptance*: I concede it; *after the acceptance*: I deny the antecedent and the consequence. Before the election is confirmed by the acceptance, it is a human work, depending on the testimony of a few and subject to many doubts, such as those mentioned in the objection. But after the election is confirmed by the acceptance, the elected Pontiff is now a divine work and no longer a human one, and by that very fact confirmed by Christ, so that the acceptance, being equivalent to a divine revelation, infallibly manifests to us that the elected Pontiff is a true Pontiff, subject to no doubts, and consequently that he is a man, duly baptized, duly ordained, etc.; for all these are contained formally implicitly in the quiddity of a true Pontiff.

To Confirmation 1. Reply: I concede the first part of the antecedent, I deny the second. For that female Pope of Martin of Poland is a notable fiction, imported, as they say, from Utopia, and is believed to take its origin from some heretic, from whom Martin drew his fable. But the occasion of

this most lying invention was the timid, and so effeminate, spirit of John in defending the rights of the Church, which he displayed above all when he crowned the younger son of Louis the Pious in preference to the elder; and likewise when, singing that *placebo domino* which is familiar to not a few even today, but by no means pleasing to the Most High, at the instance of Basil the Emperor of the East he admitted the schismatic Photius, condemned and excommunicated by the Third Council of Constantinople, to the see of the deceased[5] blessed Ignatius. On account of this timidity of his, and this fickleness of mind, he was in mockery called a woman, just as in fact we are accustomed to entitle timid men women, on account of a fickleness of mind equal to that of women.

To Confirmation 2. Reply. {p. 67}Reply: I again concede the first part of the antecedent, and again deny the second. For Formosus, rightly named from *forma*, the omen matching the name, was not only a true Pope, but moreover (as Bellarmine is witness) distinguished in doctrine and holiness, and so made a pattern (*forma*) to the flock. But that Stephen VII held him for a Pseudo-Pope, raging strangely and dreadfully against his harmless remains and invalidating all his acts, was not a matter of law but of fact; it was transacted not from the chair of Peter but from the chair of pestilence, out of a passion that had seized his mind, the cause not having been sufficiently examined; nor was it approved by the successors of the same Stephen VII, Romanus I and Theodore II; on the contrary, it was manifestly disapproved and reprobated by John IX.

1. Objection IV. Although the Church is the pillar and ground of truth, she does not on that account have promised to her the infallible assistance of the Holy Spirit in the election and acceptance of the Pontiff; therefore. Proof of the antecedent: every infallibility that the Church enjoys she receives dependently on her Head; therefore. Confirmation 1: the incomplete Church does not have the infallible assistance of the Holy Spirit with a view to deciding controversies of faith; but the present question, whether the Supreme Pontiff reigning for the time being, say Clement XII, is a true Pontiff, is one of the controversies of faith; therefore. I subsume: but if it were of faith that the Pontiff reigning for the time being is a true Pontiff, the incomplete Church would have the infallible assistance of the Holy Spirit with a view to deciding controversies of faith, because the acceptance would be an infallible decision of this controversy; therefore. Confirmation 2: the Church has at some time erred, at least for a short time, in recognizing the true Pope, as seems to have happened in that famous schism in which three Pontiffs sat on the see of Peter; therefore she can also err for a longer time. Confirmation 3: the Church erred in thinking the marriages of eunuchs legitimate, until Sixtus V had declared them illegitimate; therefore she can also err in accepting an illegitimate Pontiff as legitimate.

Reply to the argument: I deny the antecedent. To the proof: I distinguish the antecedent. Every infallibility which the Church enjoys through the assistance of the Holy Spirit *with a view to accepting her Head* she receives dependently on her Head himself: I deny the antecedent. The infallibility she enjoys *with a view to deciding controversies of faith*: I subdistinguish — *radically*: I

deny the antecedent; *formally*: I subdistinguish still further — *before she legitimately has him*: I deny it; *after she legitimately has him*: I concede the antecedent; and I deny the consequence. For with a view to accepting her Head the Church, as {p. 68} *the pillar and ground of truth*, has promised to her the infallible assistance of the Holy Spirit independently of her Head himself, lest otherwise, against her character as *the pillar and foundation of truth*, she should err in accepting that Head of hers, and consequently also in the controversies of faith decided through him, as through a putative Judge of controversies who in reality is none. But with a view to deciding those controversies of faith which are contradistinguished from this one about the true Pontiff having been accepted — a controversy decided by the acceptance itself, though not *signately* [*signate*], yet in exercise [*exercite*] — she does not at all have promised to her the infallible assistance of the Holy Spirit independently of her Head himself, except *radically*: that is, insofar as she has the power of taking up such a Head, by force of which she requires infallibility in deciding controversies of faith; so that the infallibility which she roots *in the divided sense* of her Head, that is, *before she has him*, that same infallibility, namely in deciding controversies of faith, she has *formally in the composite sense* of her Head, that is, *after she has him*.

Hence to Confirmation 1. Reply: I distinguish the major. The incomplete Church does not have the infallible assistance of the Holy Spirit with a view to deciding those controversies of faith which are distinct from this one about the true Pontiff having been accepted: I concede the major, or let it pass, because it could be subdistinguished by the terms *radically* and *formally*. With a view to deciding those which are not distinct from this one about the true Pontiff having been accepted: I subdistinguish — with a view to deciding them *signately*: I concede; with a view to deciding them *in exercise*: I deny the major. I distinguish the minor proportionally, together with the concession, and I deny the consequence. For although the incomplete Church cannot decide the other controversies of faith, distinct from this one about the true Pontiff having been accepted, except *radically*, nevertheless she decides this very controversy about the true Pontiff having been accepted, and those not distinct from it — such as that this Pontiff is a man and not a woman, duly baptized, duly ordained, etc. — by the acceptance itself, as being equivalent to a divine utterance, though not *signately*, yet *in exercise*; leaving that to be decided *signately* by the Church, now made complete through the Head she has taken up. And this same thing seems also already to have been decided by the ecumenical Councils cited at § 58 in the first proof of the conclusion.

To Confirmation 2. Reply: let the antecedent pass, I deny the consequence. The disparity is this: because, granted but not conceded that the Church erred for a short time in recognizing the true Pope, that would nevertheless not expose her to the danger of false dogmas and of a well-nigh irreparable harm; for the acts of such a doubtful Pontiff neither have validity, for want of a true Pontificate, nor do they acquire force unless they are approved and established by a certain Pontiff — although indeed even this would not come about altogether without some detriment to the Church. But if the Church were to err for a longer time in accepting as a true Pontiff one who was in reality no Pontiff at all, say through the whole course of a Pontificate, that would expose her to the

danger of false dogmas and of a well-nigh irreparable harm, because she could err in the same way about a second and a third, and so on. For the rest, I said: let the antecedent pass; for it is not true, but altogether false, that the Church ever erred, even for a short time, in accepting the true Pontiff, since in no historian, unless a forger, does there exist any testimony to this assertion. But as to the fact that it has sometimes happened that several occupied the see of Peter, note this concerning it: that such a schism can arise in three ways. First, that to one man legitimately elected and peacefully accepted a second is added; and in this case the first has prescribed and remains in possession of the true Papacy, against the later schismatic Antipope. Secondly, that the greatest part of the Church, and as it were the whole, accepts a Pontiff, apart from one or another king, the author of a schism, for whose sake some Cardinals, withdrawing from the true Pope, go over to a Pseudo-Pope; and in this case, although a partial Church errs, the whole Church nevertheless does not err, the right standing on the side of that Pontiff who was accepted by the greatest part of the Church, and so by what is as it were the whole, and who is in reality the true one, against the Pseudo-Popes. Thirdly, that when two or three are sitting, contradiction is made almost equally from the two or three parties; and in this case, as none is a peaceful possessor of the true Papacy, so none is a true Pope, but they are mere Antipopes.

To Confirmation 3. Reply: I deny the antecedent. For the Church did not think this, nor positively approve it, much less lawfully define it; she only permitted it and passed it over in silence, and so, because of the exigency of circumstances, conducted herself only negatively, in which there lies hidden nothing of error. But upon the acceptance she exerts a positive influence; and therefore she could not but err by accepting a false Pontiff for a true one, with the long tail of absurd consequences already recounted.

1. Objection V. The acceptance of the Church is not a virtual revelation and an infallible application of that universal proposition, *every Pontiff legitimately elected and peacefully accepted*, etc., to this singular one: therefore *this individual*[6] *Pontiff is a true Pontiff*; therefore. Proof of the antecedent: the election by the Cardinals is not the said revelation and the said application; therefore neither is the acceptance of the Church. Proof of the consequence, first: because the acceptance of the Church is founded on the election by the Cardinals; therefore if the election by the Cardinals is not the said revelation and the said application, neither will the acceptance of the Church be. Proof of the consequence, secondly, by parity: because the acceptance of a law is founded on the will of the prince, the acceptance by the subjects has no greater force than the will of the lawgiver; therefore the same holds by parity. Confirmation 1: if the *completed* election were such a virtual revelation and infallible application, the *continued* election would be so too; but it is not, because the Church can retain one elected in a *completed* manner, prudent and faithful, and go on accepting him in this way *continuously* after he has become insane or has turned unbeliever, and so accept a false Pontiff for a true one; therefore. Confirmation 2: if the acceptance were a virtual revelation, infallibly applying that universal proposition, *every Pontiff legitimately elected*

and peacefully accepted, etc., to this singular one, therefore *this individual Pontiff is a true Pontiff*, it would do this either before, or in, or after the terminative instant of the acceptance itself; but it does not do this in any of the said instants, because in none of them is a new revelation made; therefore.

Reply to the argument: I deny the antecedent. To the proof: I concede the antecedent, I deny the consequence; because the election by the Cardinals is not, as the acceptance of the Church is, the last act in which the mind and will of the Church are explicated with respect to her legitimate Head — so much so that, even if the first election by the Cardinals were not legitimate, the second election, that of the Church, would still not be illegitimate or erroneous. Otherwise the Church would be a pit of falsehood rather than the pillar of truth, being deceived in the rule and by consequence also in what is ruled by it; since the certitude of the rule cannot be exceeded by the certitude of the thing ruled, and the Church herself is no rule independently of her Head — except, note well, in accepting him, lest otherwise, together with him, she should be a guiding star for erring. For the rest, not without him but with him she has the force of ruling in all remaining matters.

To the first proof of the consequence. Reply: I distinguish the antecedent. The acceptance of the Church is founded on the election by the Cardinals *as on a condition in fact preredquired by positive law*: I concede; *as on an infallible testimony*, or on some other basis of her infallibility: I deny the antecedent and the consequence. An election does indeed precede (though not necessarily one by the Cardinals, as is clear from *note 3*), preredquired by positive law *as a condition*, and founding the acceptance that follows; but by no means as an infallible testimony, or as some other basis founding the infallibility of the acceptance — an infallibility which is to be founded, as it stands *in becoming*, and is already founded, as it stands *in accomplished being*, upon the assistance of the Holy Spirit.

To the second proof of the consequence. Reply: I concede the antecedent, I deny the consequence. The disparity {p. 71} is this: because the acceptance of a law is founded on the will^[7] of the prince in such a way that the will of the lawgiver receives no force of obligation from the acceptance by the subjects, since such a force of obliging does not belong to the subjects after they have transferred it to the prince through the *lex regia*. But the acceptance of a Pontiff is founded on the election by the Cardinals in such a way that the election by the Cardinals receives some force of revelation through the acceptance of the Church, to whom the infallible assistance of the Holy Spirit has been promised, and on whom the power has been conferred of applying that acceptance to that universal truth, formally explicitly revealed, *every Pontiff legitimately elected and peacefully accepted*, etc., and from it of explicating this singular proposition, formally implicitly revealed in it, *this individual Pontiff is a true Pontiff*. For otherwise there could be a body without a head — not to say a body without a body — and, together with its head, a ruin rather than the pillar of truth.

To Confirmation 1. Reply: I concede the major, I deny the minor. To the causal clause I say that, as it belongs to divine providence to prevent an incapable man from being elected, so it belongs to it

also to prevent an incapable man from being retained. Hence I say further that one who has become insane, and so is reckoned as a dead man (unless the insanity be temporary and not perpetual), just as he falls away from capacity, so also falls away from the power of governing, by natural law. But one who has turned unbeliever is, according to some, probably by that very fact deposed by Christ, who does not will his lambs to be fed by wolves; according to others, however, more probably not by that very fact, but only when the *sentence* of the Church supervenes, not indeed a *judicial* but a *declaratory* one. For it is nowhere read as expressed in divine law that a Pope who has become a heretic, even a manifest one, is by that very fact to be reckoned deposed by Christ; but rather, as it has been granted to the Church to take up a profitable Head, so also it has been granted to the Church to repudiate a pernicious one. And although faith is a necessary foundation of all ecclesiastical power *for its better being*, it is nevertheless not necessary *for its being simply*: as it is not necessary for the power of orders, as is plain in heretics who validly ordain, validly consecrate, etc., so neither for the power of jurisdiction. And consequently, when some decrees of the Pontiffs seem to hint that such unbelieving Pontiffs are deposed by the law itself, either they speak of inferiors, who receive their power from the Pope, or, if they speak of the supreme ones, who have their power from Christ, they must be understood to speak as regards the first act and not as regards the second act, that is, as regards a potential and not {p. 72} as regards an actual loss of the papal power. In which sense too it is true that Christ does not will his sheep to be fed by wolves. But if you say: a heretical Pontiff implicitly denies, granted not explicitly, Christ and the Church; therefore he denies himself also and his own dignity — I reply: I concede the antecedent, I distinguish the consequent. He denies himself *as a member united to Christ by faith with a view to justification*: I concede; he denies himself *as an instrument taken up by Christ with a view to the government of the Church*: I deny the consequent. The Pope remains in possession as long as there does not supervene a declaration of the Church about his nullity, on account of a lapse into manifest heresy — supposing, that is, that he can lapse into it. And this holds a fortiori in the case of the other crimes on account of which Suárez holds that the Pope cannot be arraigned by the Church with a view to his deposition.

To Confirmation 2. Reply: I concede the major, I deny the minor, and I distinguish the causal clause: in none of the said instants is a new revelation made that is *formally* such: I concede; that is *equivalently* such: I deny it, denying the causal clause of the minor and the consequence. When a new Pope is accepted by the Church, in that instant the ancient and common revelation is applied to a new and particular material object, so that the same Pope who *before* the instant of acceptance was credible *remotely* becomes credible *in* the instant of acceptance, and remains so *after* the instant of acceptance, *proximately*; the *acceptance* itself exercising a threefold office: with respect to Christ, the office of a *condition*, that he may confer the Pontifical power on the newly elected; with respect to the newly elected, the office of a *union* with the first truth, as of a material object with the formal one; and with respect to us, the office of an *application*, proposing the newly elected as an object no longer *remotely* but *proximately* credible. And so, although the first election can be annulled, the second election can no longer be annulled; but just as prescription, even though a particular injury

intervene, brings it about, on account of the certitude of ownership, that what is prescribed in good faith is justly possessed, so the acceptance of the Church, on account of the certitude of a head necessary to her by law both natural and divine, adjusts and validates the first election — even one unjust and invalid by the lower human law — by the higher law, namely the natural and divine, as being a second election. But if you say: the Church cannot accept the man elected unless she knows that he was legitimately elected; but this she cannot know, since the electors do not have the Holy Spirit infallibly assisting them; therefore — I reply: I distinguish the major. Unless she knows it positively and from a direct principle: I deny the major; unless she knows it negatively and from a reflex principle: I concede the major. I distinguish the minor in the same way, and, the causal clause of the minor being conceded, I deny the consequence. {p. 73} For the Church to accept the man elected, it is not required that she be able to demonstrate the election made to be legitimate, philosophically or theologically, through a middle term naturally or supernaturally certain, and so to know it positively and from a direct principle; but it suffices that by prudent conjectures it be established that the election is not illegitimate, even if in reality it were so, with this dictate supervening: whoever, all circumstances prudently weighed, is judged canonically elected, he must be accepted; but such is this individual man judged to be, namely Cardinal Lorenzo Corsini, from now on canonically elected Supreme Pontiff, Clement XII; therefore he must be accepted — and so she knows it negatively and from a reflex principle. And when upon this the acceptance itself at last follows, the voice of the people, which has the infallible assistance of the Holy Spirit, being equivalent to the divine voice, it comes about that such a man's being Pontiff is of faith.

1. Objection VI. Even if the Church were to accept some illegitimate Pontiff, his decrees would nevertheless still be valid, and the Church would be bound to believe them; therefore. Proof of the antecedent: a Pontiff held by the Church for legitimate, even if in reality he were illegitimate, would nevertheless be infallible in his definitions, because in such a case the Holy Spirit would assist the Church for her own good; therefore. Confirmation 1: if it were of faith that a Pontiff elected and accepted is a true Pontiff, it would also be of faith as regards future Pontiffs; but this is not so, because we do not know whether there will yet be any, since the day of the last judgment is uncertain; therefore. Confirmation 2: one who denied that Clement XII is a true Pontiff would not on that account be a heretic; but if it were of faith that Clement XII is a true Pontiff, one who denied that he is such would on that account be a heretic; therefore. Confirmation 3: it matters as much to the Church to have true faithful as to have a true Head; but concerning the former no certitude of faith is required, and moral certitude suffices; therefore neither is it required concerning the latter.

Reply to the argument: I deny the antecedent. For although a common error can avail to make the acts of a putative political prince valid, according to the law *Barbarius*, a common error cannot avail to make valid the acts of a putative *Supreme* ecclesiastical Prince. I say *Supreme*, because the said error can indeed avail to make valid even the acts of a putative ecclesiastical pastor who is *not Supreme*. But the disparity between a *political prince* and an *ecclesiastical Prince*, and between the

latter as *Supreme* and as *not Supreme*, is this: a political prince receives his power from the political community, which, {p. 74}not having the infallible assistance of the Holy Spirit promised to it, can indeed accept a putative prince, yet in such a way that, as it can confer power on a legitimate one, so it can validate the invalid acts of an illegitimate one, as it validated the acts of Barbarius Philippus. Likewise an inferior pastor of the Church receives his jurisdiction from a superior pastor of the same Church, so that, although a partial Church, likewise not having the infallible assistance of the Holy Spirit, may err in the acceptance of such an inferior pastor, the superior pastor can still, and will, by the authority of the whole Church, confer jurisdiction on such a putative inferior pastor, the salvation of the little sheep so demanding; as, the power of orders being supposed, he in fact confers the power of jurisdiction on a parish priest who is secretly a simoniac. This may be gathered, a priori indeed from the very nature of superiority, that is, of the superior power, granted for building up and not for destroying, and a posteriori from the fact that he does not oblige the faithful to a repetition of the jurisdictional acts administered to them by such a putative pastor. But the ecclesiastical Prince and Supreme pastor of the Church receives his power from Christ, as a Vicar from his Principal; and as Christ promised to the ecclesiastical community the infallible assistance of the Holy Spirit as regards accepting a legitimate Head, through whom he might be visibly with that same ecclesiastical community, as the principal Head in his Vicar, even to the consummation of the world, so to such a Vicarial Head of his, accepted by the Church, he promised the infallible assistance of the Holy Spirit in defining all matters of faith, as to the Rock against which the gates of hell shall not prevail. And therefore the whole, or as it were the whole, ecclesiastical community can as little accept an illegitimate Vicarial Head of its principal Head as such an accepted Head can fail to be legitimate, or an unaccepted one fail to be illegitimate. Hence to the proof: I deny the supposition of the antecedent, that an illegitimate Pontiff could be held for legitimate by the Church, except with the overthrow of the ground of truth. Hence too, to the causal clause I say that, as the Holy Spirit cannot fail to assist his spouse, the Church, in accepting a legitimate Head — she being the one with whom Christ promised that he would remain to the consummation of the world, and whom he constituted the pillar and ground of truth — so he cannot assist a Rock not accepted by the Church and thus illegitimate, nor fail to assist one accepted by the Church and thus now legitimate and no longer illegitimate; so that in this way the gates of hell may not prevail against her as against a legitimate Rock, and not as against an illegitimate one.

To Confirmation 1. Reply: I distinguish the major. If it were of faith, etc., this would also be of faith as regards future Pontiffs *remotely, indeterminately, and conditionally*: I concede; *proximately, determinately, and absolutely*: I deny the major. I distinguish the minor in like fashion, and I deny the consequence. The truth of future Pontiffs is of faith only *remotely and conditionally*, namely if they shall have been legitimately elected and peacefully accepted, and this *indeterminately*, their person and name being in fact unknown. But the truth of the present Pontiff, Clement XII, is of faith as *proximately, so determinately and absolutely*, because he is already legitimately elected and peacefully accepted by the Church, and therefore virtually revealed through the acceptance itself — not indeed as virtual revelation is taken for some object only virtually contained in what is formally

explicitly revealed, but as virtual revelation is taken for a testimony of deed as well, which in these circumstances is equivalent to divine speech.

To Confirmation 2. Reply: I distinguish the major. He would not be a *material* heretic: I deny the major; a *formal* heretic: I subdistinguish — the divine revelation not having been penetrated, and this inculpably: I concede; the divine revelation having been sufficiently penetrated, or not penetrated culpably: I deny the major. I distinguish the minor proportionally, and I deny the consequence. One who denied that the Pontiff reigning for the time being, legitimately elected and peacefully accepted, etc., is a true Pontiff would in truth be a *material heretic*, because he would deny an object in reality sufficiently revealed by God. If, however, he either did not penetrate that such a Pontiff is formally implicitly revealed, or judged that such a revelation does not suffice for faith, and this inculpably, he would not at all be a *formal heretic*; because in this case, although a sufficient revelation is indeed present, it would nevertheless not have been sufficiently proposed, and consequently pertinacity would be absent. And therefore one who in this way denies that such a Pontiff is a true Pontiff, although he would not be excused from *material* heresy, would nevertheless be excused from *formal* heresy.

But if you press the point and say: if it were of faith that the Pontiff sitting for the time being is a true Pontiff, as an object in reality sufficiently revealed by God, the contrary opinion would not be tolerated by the Church; but it is tolerated; therefore — I reply: I distinguish the major. If it were of faith that the Pontiff sitting for the time being is a true Pontiff *as a truth explicitly revealed and proposed through some rule of faith*, the contrary opinion would not be tolerated: I concede the major. If it were of faith that the Pontiff sitting for the time being is a true Pontiff *as a truth only implicitly revealed and proposed only through {p. 76} discourse*, the contrary opinion would not be tolerated: I deny the major. Let the minor pass; I deny the consequence. Since formally implicit revelations, as such, are not proposed through any rule of faith, for instance through Scripture or tradition, etc., but only through discourse, the Church looks the other way, so that in the schools the question may be disputed on both sides, whether such revelations are or are not of faith. And the reason for so looking the other way is this: because such a discourse, proposing an implicit revelation, can be apparently demonstrative but in truth paralogistic; likewise it can be penetrated by one man and not by another; moreover there can be agreement in the thing and disagreement only in the word, as seems to happen here. For the Adversaries [*Arii*, that is, *Adversarii*] grant to the Pontiff the power of defining matters of faith, and to us this power seems to be the moral form constitutive of a true Pontiff; and so we differ not in the thing but in the word. Nor are these scholastic quarrels of such moment that the supreme pastor of the Church should preside over them from his chair. For the rest, I said: let the minor pass; because, although the older authors [*VV.*] taught the opposite opinion, whether by way of disputation or by way of assertion, nevertheless from the time of Clement VIII, as I intimated in the conclusion, no one among the more recent authors [*RR.*] has dared, on Oviedo's testimony, to teach the opposite, especially in view of the Councils cited in the

same conclusion; so that the opinion of the Adversaries seems in truth to be no longer tolerated by the Church.

To Confirmation 3. Reply: I distinguish the major. It matters as much to the Church to have true faithful *in general*: I concede the major; *in particular*: I deny the major. I distinguish the minor in the same way, and I deny the consequence. As it is of faith that there is a true Church, as a body, so it is of faith that there are true faithful, as members, and a true Pontiff, as Head, in general. But as regards the faithful, and as regards the Pontiff, in particular, there is a disparity arising from the nature of the rule of faith, which must be known not only in general but also in particular, so that the faithful may be able to communicate with it sensibly; and this by a knowledge duly proportioned, not natural, but supernatural to the state of elevation, and therefore likewise not natural but a supernatural knowledge, namely the knowledge of faith,

BLOCK B — Two later excerpts

(a) printed 158

[Subsection VI, Article III, “Whether, and of what kind, there is any increase of the material objects of Theological Faith?”; inside § 128 (“I say: the substantial material objects of Theological Faith indeed...”), which begins on printed p. 156 (PDF 172).]

Confirmation: Many truths have been defined in Councils which previously were not of faith except according to the implicit: as that Christ is consubstantial with the Father, that he has two wills, that the Blessed Virgin never sinned venially, that justification comes about through an intrinsic quality, that is, through inherent grace, and not through a pure extrinsic imputation, etc. Likewise to many saints, as may be read in their approved lives, both men and women, not a few private revelations have been made; and of these some were in accordance with, others beside — though not against — the substantial material objects of Theological Faith, and also the other accidental ones already revealed elsewhere, in such a way that they were not contained in those objects, either by reason of the material or by reason of the formal object, and therefore were not even implicitly believed. Likewise many contingent objects, which in the time of the Apostles were implied in general and were believed only implicitly, are in the time of their successors explicated in particular and believed explicitly: as that the sacred Council of Trent is a true Council, and that today’s Clement XII, legitimately elected and peacefully accepted, is a true Pontiff; therefore.

(b) printed 166

[Subsection VI, Article III; inside the Reply of § 136 (“Objection IV, against parts 4 and 5. In the Church there are no new revelations...”), at the reply to Confirmation 2.]

Still the holy Apostles retain their prerogative, that they not only understood the Scriptures and all the mysteries of our faith that belong to tradition, but moreover that they understood these with excellence, that is, with a certain singular mode of intensity and perfection of faith, discerning, for example, that the substance of bread does not remain in the Eucharist, that everyone who shall legitimately succeed blessed Peter will be a true Pontiff, that every Council legitimately assembled will be a true {p. 167}true Council, etc.

Sic-notes

1. [1] The print has “adifecabo” for “ædificabo” (“I will build”), PDF 74, printed p. 58.
2. [2] The print has “Matth. 18.” where “Matth. 28.” (Matt. 28:20) is meant, PDF 74, printed p. 58.
3. [3] The print has “ruente Pontificum” for “ruente Pontifice” (“if the Pontiff fell”); the same paragraph has “and if the Pontiff falls, the bishops fall” a few lines earlier, PDF 78, printed p. 62.
4. [4] The print has “Ponficiam” for “Pontificiam” (“Pontifical”); the word is broken “Ponfi- / ciam” across two lines, PDF 78, printed p. 62.
5. [5] The print has “de mortui” as two words for “demortui” (“deceased”), PDF 82, printed p. 66.
6. [6] The print has “hic non Pontifex” for “hic n. Pontifex” (“this individual Pontiff”); the parallel wording at printed p. 70 and p. 71 has “hic n. Pontifex”, PDF 85, printed p. 69.
7. [7] The print has “involuntate principis” for “in voluntate principis” (“on the will of the prince”); the objection being answered, at printed p. 70, has “the acceptance of a law is founded on the will of the prince”, PDF 87, printed p. 71.

Closing note

Technical vocabulary is rendered by fixed equivalents throughout, so that the argument’s distinctions stay visible: *revelatio formalis explicita* / *formalis implicita* / *virtualis implicita* as formal explicit, formal implicit, and virtual implicit revelation; *objectum materiale proximum* / *remotum* as proximate and remote material object; *dispositiva conditio* and *formalis designatio* as dispositive condition and formal designation; *signatè* / *exercitè* as signately and in exercise; *hic n. Pontifex* as “this individual Pontiff”, the *n.* standing for *numero*. The scholastic response sigla are expanded into full English formulas (“I deny the antecedent”, “I concede the major”, “let it pass”), which lengthens the replies but keeps the sequence of concessions and denials followable; at the reply to Confirmation 2 of § 66 the printed string “N. causalem m. & C.” is compressed and its final siglum uncertain, and it is rendered as a denial of the causal clause of the minor and of the consequence. Bartis’s periods are broken into shorter English sentences where the syntax would otherwise become unreadable, but no clause is dropped, and the page markers are placed at word

boundaries in the English rather than inside a word, since the English words are not split where the Latin ones were.